

Shiv Nath Singh v. State of U.P.

Allahabad High Court · Division Bench · 4 July 2022 · Writ - C No. 13513 of 2022 · **Writ disposed; petitioner relegated to clause 6.5 objection.**

HEADNOTE

Without expressing any opinion on merits, the High Court disposed of a writ seeking mandamus against recovery of alleged incorrect electricity bills by giving the consumer liberty to file an objection under paragraph 6.5 of the U.P. Electricity Supply Code, 2005. If filed within four weeks, the distribution licensee was to decide it in accordance with law within the next four weeks after hearing. Coercive action on the impugned demand was stayed for eight weeks or until disposal of the objection, whichever was earlier.

FACTUAL SUMMARY

Shiv Nath Singh held connection no. 4012/5549. On 20 July 2014 he applied for permanent disconnection because his tubewell had stopped functioning, and he asked that bills be realised only up to that date. Alleging subsequent incorrect demands and coercive recovery, he sought mandamus directing the distribution licensee to consider his claim, enquire into the bills, and refrain from harassment. Counsel for the Power Distribution Corporation stated on instructions that the petitioner could file an objection to the impugned demand, which would be decided in a time-bound manner.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

objection to disputed electricity demand

HOLDING

Without expressing any opinion on merits, a writ challenging an electricity demand is disposed of by giving the consumer liberty to submit an objection under paragraph 6.5 of the U.P. Electricity Supply Code, 2005 before the distribution licensee within four weeks. If so submitted, the licensee shall decide it in accordance with law within the next four weeks after affording a reasonable opportunity of hearing. No coercive action shall be taken on the impugned demand for eight weeks or until disposal of the objection, whichever is earlier. ¶ 3-5

PRINCIPLE TAGS

clause-6.5-alternate-remedy-to-writ Writ for mandamus against alleged incorrect bills and coercive recovery disposed of by relegating the consumer to a clause 6.5 objection, without any opinion on merits. ¶ 4

clause-6.5-statutory-remedy-disputed-bill The statutory remedy for the disputed demand is an objection under paragraph 6.5, to be decided by the licensee in a time-bound manner after hearing. ¶ 3-4

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE IMPUGNED BILLS AND WHETHER CHARGES AFTER THE 20 JULY 2014 DISCONNECTION APPLICATION WERE PAYABLE

Court expressly declined to express any opinion on merits. ¶ 4